

Constitutional, Administrative, and Judicial Developments in British India

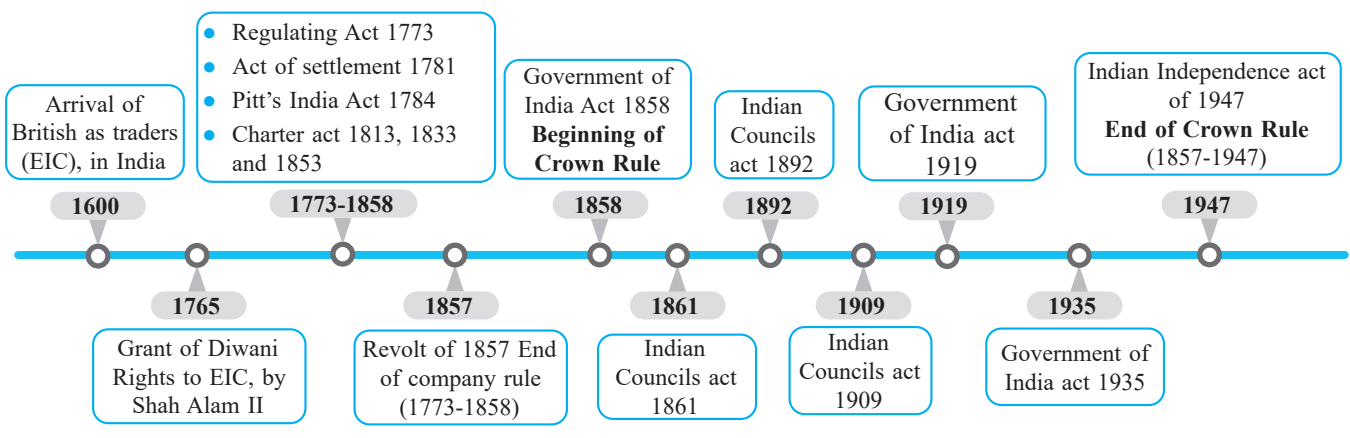
CONSTITUTIONAL DEVELOPMENTS IN BRITISH INDIA

The **East India Company**, founded in **1600**, transitioned from a trading entity to a governing authority by **1765**. Its rule from **1773 to 1858** and the subsequent **British Crown rule** from **1858 to 1947** led to significant changes in India's constitutional and administrative structures, primarily to further the **British imperial agenda** while inadvertently modernising India's political framework.

Key Periods of Rule:

- **Company Rule (1773-1858):** Established a governance framework under the East India Company.
- **Crown Rule (1858-1947):** Direct British control that introduced major administrative changes.

The Acts Enacted by the British are Explained Here in Chronological Order



Note: A detailed account of all the acts enacted by the British as per their constitutional developmental efforts has been covered in **UDAAN 2025 Polity Booklet**.

EVOLUTION OF CIVIL SERVICES IN INDIA

- Initially introduced by the **East India Company** for commercial purposes, the civil service evolved into a comprehensive administrative machinery overseeing governance in India.
- The term “**civil service**” was first recorded in **1757**, distinguishing Company employees in commerce from those in the military.
- **1772:** Establishment of the **District Collector** role by Lord **Warren Hastings** to manage local administration.
- **Lord Cornwallis** is recognized as the **founding father of modern Indian civil services**, introducing significant reforms.
- Civil servants were selected by the East India Company directors and trained at **Haileybury College** in London before being assigned to India.
- In **1854**, a shift towards a merit-based civil service was proposed through **Lord Macaulay's report** to the British Parliament's Select Committee.
- The report advocated for:
 - Replacement of the patronage system with a **permanent Civil Service**.
 - Implementation of **competitive examinations** to ensure merit-based recruitment.
- Subsequently, the **Civil Service Commission** was established in London in **1854**, leading to the first competitive examinations in **1855**.

Key Developments in Indian Civil Services

1. Lord Cornwallis (Governor-General, 1786–1793)

- **Establishment and Organization:** Cornwallis was instrumental in organising the civil services and laid the foundation for modern administrative practices.
- **Anti-Corruption Measures:** Increased civil servant salaries, enforced rules against private trade & prohibited acceptance of presents and bribes.
- **Cornwallis Code of Civil Services:** This code emphasised promotions based on seniority and set standards for civil service conduct, marking a significant step towards structured governance.

2. Lord Wellesley (Governor-General, 1798–1805):

Established **Fort William College** in 1800 for training civil service recruits & founded **East India College** in 1806 after the Court of Directors' disapproval of Fort William College, where recruits underwent a two-year training program.

3. Charter Act of 1853

- **End of Patronage System:** The Act abolished the East India Company's patronage system, introducing recruitment through open competition.
- **Challenges for Indian Aspirants:**
 - Examination conducted exclusively in London, with no local centres in India.
 - The syllabus heavily favoured British candidates, focusing on Greek, Latin, and English.
 - Maximum age limit reduced from 23 to eventually 19 years, further limiting access.
 - Prejudices against Indians led to intense competition among European candidates for lucrative positions.

4. Indian Civil Service Act of 1861

- **Formal Establishment of ICS:** This Act created the **Indian Civil Services (ICS)**, with rigorous recruitment through competitive examinations held in England, based on classical studies.
- **Progressive Age Limit Reductions:** The maximum age limit for candidates was gradually lowered, creating additional barriers for Indian aspirants.
- **First Indian to Qualify:** In 1863, **Satyendra Nath Tagore** became the first Indian to pass the ICS examination.
- **Reinforcement of British Control:** The Act limited Indian representation in the ICS and maintained British authority over governance.

Statutory Civil Service

- **Establishment:** Introduced by **Lord Lytton** in 1878–1879.
- **Quota for Indians:** Allocated **one-sixth** of covenant posts to be filled by **Indians** from affluent families.
- **Nominations:** Appointments required **nominations** by local governments and approval from the **Viceroy** and the **Secretary of State**.
- **Outcome:** The system was **unsuccessful** and was eventually **abolished**.

Aitchison Committee

- **Formation:** Established in 1886 by **Lord Dufferin** following the founding of the **Indian National Congress** in 1885.
- **Key Recommendations:**
 - Abolition of the terms '**covenanted**' and '**uncovenanted**'.
 - Reorganisation of the civil service into three categories:
 - ◆ **Imperial Indian Civil Service** (examination in England).
 - ◆ **Provincial Civil Service** (examination in India).
 - ◆ **Subordinate Civil Service** (examination in India).
 - Raising the **age limit** for candidates to **23**.
 - **Simultaneous Examinations:** Supported conducting civil service examinations simultaneously in **India** and **Britain**; however, this was never implemented.

Montford Reforms (1919)

- **Simultaneous Exams:** Recommended conducting **simultaneous examinations** in both India and England.
- **Recruitment Quota:** Suggested that **one-third** of recruitments be made in India, to be increased annually by **1.5%**.

Lee Commission (1924)

- **Recruitment Responsibility:** The **Secretary of State** to continue recruiting for **Indian Civil Service (ICS)** and related services (e.g., **Irrigation branch**, **Indian Forest Service**).
- **Provincial Governments:** Responsible for recruitment in areas like **education**.
- **Direct Recruitment Policy:** **50:50 parity** between **Europeans** and **Indians** in civil service recruitment over **15 years**.
- **Key Recommendations:**
 - Establishment of a **Public Service Commission**.
 - **Simultaneous civil service examinations** in **India** and **England**.
 - **One-third recruitment quota** for **Indians**, progressively increasing.
 - **Secretary of State** to oversee recruitment for ICS and related services.

Government of India Act (1935)

- **Public Service Commissions:** Recommended the establishment of **Federal** and **Provincial Public Service Commissions**.
- **Indianization:** Despite these recommendations, positions of authority remained largely in **British hands**, and the Indianization of the civil service did not translate to actual **political power** for Indians.

POLICE AND MILITARY SYSTEM IN BRITISH INDIA

Mughal and Native States' Governance

- **Autocratic Governments:** Both the **Mughal** rulers and **native states** exhibited autocratic governance without a formal police system.
- **Law and Order Maintenance:**
 - **Faujdar:** Responsible for maintaining law and order.
 - **Amils:** Primarily collected revenue but also addressed rebellious activities.
 - **Kotwal:** In charge of maintaining order in urban areas.
- **Zamindars during Dual Rule (1765-1772):** Entrusted with maintaining law through staff, including thanedars. Many zamindars, however, neglected their responsibilities and were accused of collusion with dacoits.

Development of Police System

Establishment of Faujdar Thana

- **1770:** Abolition of **faujdar** and **amil** institutions.
- **1774:** **Warren Hastings** reinstated **faujdar**s to combat **dacoits** and disorder, supported by **zamindars**.
- **1775:** Establishment of **faujdar thanas** in major towns, supplemented by smaller police stations.
- **1791: Regulation of 1791** defined the powers of **Police Superintendents** for efficient policing.
 - **Cornwallis** increased police **salaries** and offered **rewards** for capturing criminals to enhance integrity and responsiveness.
 - Modernised the **thana system**, with a **daroga** (Indian) and **Superintendent of Police (SP)** overseeing each district, relieving zamindars of policing duties.
- **Zamindars** lost policing authority; they were not accountable for robberies unless complicit.
- **English magistrates** gained control over district police.
- Districts divided into **400-square-mile areas**, each managed by a **Police Superintendent** and constables, centralising authority and improving law enforcement.
- **1808:** **Mayo** appointed an **SP** for each division, assisted by spies (**goyendas**), who sometimes engaged in criminal activities.
- **1814:** The **Court of Directors** abolished **darogas** and their subordinates in all Company territories, except Bengal.
- **Governor-General Bentinck (1828-35):** Abolished the **SP** role, assigning the **collector/magistrate** to lead the police force, leading to poor organisation and an increased burden on collectors.

- Recommendations led to the **Indian Police Act of 1861:**
 - Established a **civil constabulary** while retaining the village watchman system.
 - Created a hierarchy with an **Inspector-General** for provinces, **Deputy Inspector-Generals** for ranges, and **SPs** for districts.
- While successful in reducing crimes like **dacoity** and **thuggee**, police often had an unsympathetic relationship with the public and were used to suppress the **national movement**.

Andrew Frazer Commission (1902-03)

- Proposed direct recruitment of senior police officials, establishment of **training schools** for constables and officers, and increasing police force strength in provinces.
- Recommended allowing police to conduct village inquiries, enhancing **salaries**, and creating a **Criminal Intelligence Department** at the Centre.

MILITARY STRUCTURE AND GOVERNANCE IN BRITISH INDIA

Pre-1857 Military Setup

- The military was crucial for British governance, consisting of:
 - **Queen's Army:** Troops part of the Crown's military.
 - **Company's Troops:** Local European and Native regiments led by British officers.
- Post-Battle of Plassey, **Robert Clive** changed recruitment practices, favouring **martial races** from **wheat-producing** regions over those from rice-growing areas.
- **Warren Hastings** emphasised recruiting **high-caste warriors** from **Bihar, Uttar Pradesh**, and focused on **Rajputs** and **Brahman zamindaris**.
- The 1820s saw a decline in cavalry use, with British soldiers adopting **muskets** and **matchlocks**.
- A uniform military culture emerged through **European-style training** and discipline.

Post 1857 Changes

- The **1857 Revolt** led to significant military reorganisation to prevent uprisings and protect against imperialist threats.
- **Key changes included:**
 - Emphasis on **European dominance** over Indian branches.
 - Fixed ratios of **Europeans to Indians** in armies.
 - Exclusion of Indians from high-tech roles until **World War II**.
 - Limited officer roles for Indians until **1918**; a proposal for 50% Indianized officer cadre by **1952**.

Policy and Ideology

- The **divide-and-rule principle** and **martial race ideology** shaped the recruitment policies.
- Favouritism towards **Sikhs, Gurkhas, and Pathans**; labelling other groups as non-martial.
- Establishment of **Caste and Communal Companies** aimed to balance representation and prevent nationalist sentiments among troops.
- Restrictions on newspapers and publications limited soldiers' connections with the general populace.

British Army's Role and Global Ambitions

- The British Army's presence in India began during the **First Carnatic War (1747)**, leading to a permanent military establishment.
- The **General Services Enlistment Act of 1856** mandated sepoys to serve anywhere, clashing with their caste beliefs.
- Post-revolt, the **Royal Peel Commission of 1859** recommended a British to Indian soldier ratio of **1:2.5**, merging East India Company forces with Crown troops.

JUDICIAL DEVELOPMENTS IN BRITISH INDIA

Pre-Colonial Judicial System in India

- **Lack of Structure and Organization:** The judicial system in pre-colonial India was characterised by absence of established **procedures** and structured **law courts & poor distribution of courts** based on the size of regions.
- **Hindu Dispute Resolution:** Legal matters were primarily resolved by **caste elders, village panchayats, or zamindars**.
- **Muslim Judicial System:** Administered by **qazis**, religious authorities in provincial capitals and larger towns.
- **Rulers' Role:** Kings and emperors were considered the ultimate sources of justice, leading to an **arbitrary** justice delivery process.

Evolution of Judicial System in British India

- The transition to a **common law system** began with the establishment of **Mayor's Courts** by the **East India Company (EIC)** in 1726:
 - Founded in **Madras, Bombay, and Calcutta**.
 - The **Charter of 1662** authorised the EIC to execute judicial powers in India.
 - The **Charter of 1726** allowed the establishment of Mayor's Courts but did not clarify the Company's jurisdiction over **natives**.
- As the EIC shifted from a trading entity to a ruling authority:
- It began to replace the existing **Mughal legal system** with new judicial elements, reshaping the administration of justice in India.

Reforms Under Warren Hastings (1772–1785)

- **District Diwani Adalats:**
 - Established for civil disputes, presided by the **Collector**.
 - **Hindu** laws for Hindus; **Muslim** laws for Muslims.
 - Appeals to **Sadar Diwani Adalat**.
- **District Faujdari Adalats:**
 - Created for criminal disputes, managed by Indian officers.
 - Applied **Muslim law**; serious decisions needed approval from **Sadar Nizamat Adalat**.
- **Supreme Court:**
 - Established in **Calcutta** under the **Regulating Act of 1773**.
 - Jurisdiction over all British subjects; conflicts with other courts persisted.
- **Authority Expansion:**
 - Established civil and criminal courts in districts (**Mofussil Nizamat Adalat**).
 - Efforts to codify **Hindu** and **Muslim laws** through translations.

Reforms Under Cornwallis (1786–1793)

- **Introduction of Separation of Powers:** Established a clear division of judicial authority.
- **Abolition of District Faujdari Courts:** Replaced with **Circuit Courts** presided over by European judges in Calcutta, Dacca, Murshidabad, and Patna, serving as appellate courts for civil and criminal cases.
- **Relocation of Sadar Nizamat Adalat:** Shifted to **Calcutta** under the governor-general and members of the **Supreme Council**, assisted by the chief qazi and chief mufti.
- **Transformation of District Diwani Adalat:** Renamed as **District, City, or Zila Court** and overseen by a district judge, limiting the collector's role to revenue administration.
- **Establishment of a Hierarchical Court System:**
 - **Munsiff's Court:** Managed by Indian officers.
 - **Registrar's Court:** Presided over by a European judge.
 - **District Court:** Under the district judge's jurisdiction.
 - **Four Circuit Courts:** Provincial courts of appeal.
 - **Sadar Diwani Adalat:** In Calcutta.
 - **King-in-Council:** For appeals of £5,000 and above.
- **Centralization of Authority:** Cornwallis aimed to streamline administration by empowering Collectors as judges of Diwani Adalats, with expanded magisterial powers to try certain criminal cases.

William Bentinck (1828–1833)

- **Judicial Reforms:** Abolished **Circuit Courts** (Cornwallis) due to backlog; transferred functions to **collectors**. Established **Sadar Diwani** and **Nizamat Adalats** in **Allahabad** for local justice. Replaced **Persian** with **English** in higher courts; allowed **vernacular languages**.
- **Legal Codification:** Formed **Law Commission** (1833) under **Thomas Macaulay**, leading to the **Indian Penal Code** (1860), **Civil Procedure Code** (1859), **Criminal Procedure Code** (1861).
- **Social Reforms:** Abolished **Sati**, **infanticide**, and suppressed **Thugs**. Promoted **press freedom**, **education**, and **Indian participation** in governance.

Later Developments in the Indian Legal System (1833–1935)

The period from 1833 to 1935 saw significant reforms in the **Indian legal system** under **British rule**, laying the groundwork for modern judicial practices.

Key Developments

- **Abolition of Special Privileges (1860):** Europeans in India lost special privileges (except in **criminal cases**), ensuring that all individuals were subject to the same laws, although no **Indian judge** could preside over cases involving Europeans.
- **Establishment of High Courts (1865):** The **Supreme Court** and **Sadar Adalats** were merged to create **High Courts** in **Calcutta**, **Bombay**, and **Madras**, streamlining the judicial process.
- **Creation of the Federal Court (1935):** The **Government of India Act** established a **Federal Court** in 1937 to resolve disputes between governments and hear limited appeals from High Courts, centralising the legal framework.

ADMINISTRATIVE REORGANISATION

Post-1857 Reforms

- **Inclusion of Natives:** Indians were integrated into the administration to better understand local customs, improving governance.
- **Reduced Alienation:** Efforts to bridge the gap between rulers and subjects aimed at reducing discontent and preventing uprisings.
- **Imperial Interests:** Reforms were driven by British imperial goals, not Indian welfare.
- **Phase-Based Implementation:** Reforms focused on securing British dominance, safeguarding trade interests against global powers like the U.S. and Japan.
- **Resurgence of Imperialism:** Viceroys like **Lytton**, **Dufferin**, **Lansdowne**, **Elgin**, and **Curzon** implemented reactionary policies to strengthen British control.

CENTRAL ADMINISTRATION REFORMS POST-1857

Transfer of Power and End of Dual System

Act for Better Government of India (1858)

- Transferred governance from the **East India Company** to the **British Crown** following the **1857 Revolt**.
- A new **Secretary of State** for India, part of the British Cabinet, was established with assistance from a **15-member Council**.
- **Parliament** retained ultimate control, ending the dual system initiated by **Pitt's India Act, 1784**.

Viceroyalty and Executive Council (1858)

- The **Governor-General** was now titled **Viceroy**, representing the **Crown** directly in India.
- The Viceroy, supported by an **Executive Council** of department heads, gradually saw a reduction in authority due to the Secretary of State's centralised power.
- This shift enhanced the influence of British **industrialists**, **merchants**, and **bankers** over Indian policy, making administration increasingly reactionary.

Government of India Act, 1858

- Enacted to better integrate **Crown authority** over India, it introduced the **Viceroy** title for the Governor-General, symbolising direct **imperial governance**.

Indian Councils Act, 1861

- Expanded the **Executive Council** with a **fifth member** and allowed the Viceroy to appoint **6-12 members** for legislative functions.
- **Weaknesses of the Legislative Council:** limited discussions on financial matters, no control over the budget, inability to scrutinise executive actions, dependence on the Viceroy's approval for bills, and limited, elitist representation. Additionally, the Viceroy could issue emergency ordinances.

Titles and Proclamations

- **Royal Titles Act, 1876:** Empowered the British sovereign to adopt the title **Empress of India** (or **Kaiser-i-Hind**), marking increased imperial presence.
- **Proclamation of 1877:** Officially declared during the **Delhi Durbar**, further symbolising direct British Crown control.

Provincial Administration and Legislative Decentralization

Legislative Powers Restoration (1861)

- The **Indian Councils Act of 1861** restored legislative powers to **Madras** and **Bombay**, which had been stripped in 1833.
- **Bombay, Madras, and Calcutta** presidencies held more rights than other provinces and were governed by **governors and executive councils** appointed by the Crown, while other provinces were led by lieutenant governors and chief commissioners appointed by the Governor-General.

Administrative Decentralisation

- **Charter Act of 1833:** This act centralised legislative power, restricting **Bombay and Madras** to proposing laws to the Governor-General-in-Council.
- **Indian Council Act of 1861:** Reversed legislative centralization, granting Bombay and Madras provinces legislative powers, though some actions required prior approval from the **Governor-General**. Legislative Councils were later established in other provinces.
- **Indian Councils Act of 1892 and 1909:** These acts expanded the legislative powers of provincial councils.
- **Government of India Act of 1919:** Introduced **dyarchy**, splitting responsibilities between elected Indian ministers and British officials in provincial governments.
- **Government of India Act of 1935:** Established **provincial autonomy**, granting even more authority to Indian leaders at the provincial level.

Financial Decentralisation Efforts

- **Lord Mayo (1870):** Introduced fixed funds for specific services like **police** and **education**, marking the start of provincial financial responsibility.
- **Lord Lytton & Lord Ripon:** Continued devolving financial responsibilities to provinces.
- **1877:** Provinces gained control over **excise, land revenue, law, and justice** expenses.
- **1882:** The “Divided Heads” system replaced fixed grants, splitting income from sources like **excise, stamps, and forests** between the central and provincial governments, lasting until the **1919 Government of India Act**.
- **Lord Lytton’s reforms:** Transferred spending responsibilities (e.g., land revenue, law, excise) to provincial governments. Provinces received a fixed share of income from stamps, excise, and income tax, with revenue divided into central, provincial, and shared sources.
- Despite financial decentralisation efforts, the **central government** retained ultimate authority, overseeing provinces closely.
- Both **central and provincial governments** were subordinated to the **Secretary of State and British Government**, maintaining central supremacy over provincial matters.

Local Administration and Development of Local Government

Factors Driving the Shift Toward Local Governance:

- **Overcentralization** and **financial strain** prompted Britain to delegate responsibilities to **local bodies**. **European-style civic amenities** were adopted, and **nationalist demands** for better public services influenced British responses. Involving **Indians** in governance and using **local taxes** helped address growing political pressures.

Evolution of Local Government

- **Acts for Municipalities:** Local governance structures were established through **Acts passed between 1864 and 1868** for Bengal, Madras, Punjab, and the North-Western Provinces (modern-day U.P.).
- **Lord Mayo’s Reforms (1870):** Emphasised self-government and strengthened **municipal institutions** by introducing provincial finance reforms. Subsequent Municipal Acts for Madras, Bombay, Bengal, and other provinces were passed in the early 1870s, though the elective principle remained limited.
- **Lord Ripon’s Reforms (1881-82):** Expanded **local self-government** and promoted the principle of elections. New acts (1883-84) enabled private citizens to chair municipalities, previously a role reserved for executive officers.

Mayo’s Resolution of 1870

- **Background and Legislative Devolution:** The **Indian Councils Act of 1861** initiated legislative devolution, empowering provincial governments to levy **local taxes** for budgetary balance.
- **Transfer of Departments:** Certain departments, including **education, sanitation, medical relief, and public works**, were transferred to provincial control, marking the beginning of **financial decentralisation** in India.
- **Local Involvement Emphasis:** Lord Mayo emphasised the need for local interest and management to ensure efficient handling of funds in areas such as education, healthcare, and infrastructure.
- **Implementation of Municipal Acts:** Following Mayo’s Resolution, provincial governments in regions like Bengal, Madras, the North-Western Provinces, and Punjab enacted **municipal acts** to operationalize the proposed financial and administrative changes.

Ripon’s Resolution of 1882

- **Focus on Local Self-Government:** Known as the **father of local self-government in India**, Lord Ripon emphasised developing local bodies for both **administrative improvement** and **political education**.
- **Expansion of Financial Decentralization:** Building on Mayo’s foundation, Ripon sought to empower **urban and rural local bodies** with specific duties and access to revenue sources.
- **Encouragement of Non-Official Participation:** Ripon’s resolution proposed:
 - Non-official members should form the **majority** in local bodies, with chairpersons ideally being non-officials.
 - **Minimising official interference** to oversight, with officials providing approval only for critical actions (e.g., loan approvals, new taxes, significant projects).
 - Introduction of **elections** if considered feasible by officials, paving the way for a more representative structure.

Royal Commission on Decentralisation (1908)

- **Decentralization Commission Report (1908):** Recommended strengthening local bodies like **District Boards, Sub-District Boards, and Village Panchayats**.
- **Financial Constraints:** The commission identified a critical lack of **financial resources** as a major hindrance to the effective functioning of local bodies.
- **Empowering Village Panchayats:** It emphasised granting more powers to **village panchayats**, including:
 - **Judicial jurisdiction** in minor cases.
 - **Expenditure** on local works, schools, and fuel reserves.
- **Establishment of Sub-District Boards:** Recommended creating **sub-district boards** in each taluka or tehsil with distinct responsibilities and independent revenue sources.
- **Taxation Powers:** The commission urged the removal of restrictions on **taxation powers** for local bodies and the cessation of regular **grants-in-aid** from provincial governments.
- **Municipal Responsibilities:** Suggested that municipalities should take on responsibilities for **primary education** and relieve the government of certain financial burdens.

Government of India Resolution (1915)

- **Response:** Government's view on Decentralisation Commission's recommendations.
- **Implementation:** Limited progress, local bodies' conditions largely unchanged.

Resolution of May 1918

- **Prompted by 1917 Announcement (August Declaration):** Shift towards responsible government.
- **Proposed:** Representative local bodies with real authority.

Under Dyarchy (1919)

- **Montfort Report (1918):** Advocated for increased popular control over local bodies and reduced external oversight.
- **Government of India Act 1919:** Local self-government as 'transferred' subject; finance 'reserved'.
- **Tailored Institutions:** Provinces to create local bodies suited to needs.

Simon Commission Report (1930)

- **Findings:** Limited village panchayat progress; improvements in some provinces.
- **Recommendations:** More provincial control, local tax imposition.

Government of India Act (1935)

- **Provincial Autonomy:** Strengthened local self-governance.
- **Finance:** Popular ministries controlled funds; abolished tax separation.
- **Legislative Framework:** New laws granting authority to local bodies.

Post-1935 Challenges

- **Financial Constraints:** Continued limitations.
- **New Restrictions:** Local tax limitations.
- **Neglect of Recommendations:** Provincial governments ignored liberal taxation powers.

Constitutional Provisions

- **Article 40:** Direct establishment of village panchayats.
- **73rd & 74th Amendments:** Strengthened local governance.

BRITISH FOREIGN POLICY IN INDIA

British foreign policy in India, shaped by **imperialistic objectives**, led to numerous conflicts with neighbouring countries. Key elements include:

- **Political Consolidation:** The British aimed to establish **geographical frontiers** for internal cohesion, resulting in border clashes, particularly with **Afghanistan** during the First (1839-42) and Second Anglo-Afghan Wars (1878-80). This was part of creating a **buffer state** against Russian expansionism.
- **Expansion of Commercial Interests:** Protecting and expanding British **commercial interests** often clashed with other European powers, notably **Russia** and **France**. The **Great Game** illustrates this rivalry, intensified by events like the **Crimean War** (1853-56), which threatened British interests in India.
- **Cost to India:** The financial and human costs were primarily borne by Indians. For example, the **Second Anglo-Afghan War** saw over **16,000 British casualties** and severely disrupted local economies.
- **Transformation of the East India Company:** The **East India Company** evolved from a trading entity into a political power, especially in **Bengal**. After the **Battle of Plassey** in 1757, it controlled Bengal, deposing Nawabs and exercising significant influence over local governance (*Chandra, 2008*).
- **Resource Exploitation:** The Company's policies led to substantial **wealth extraction**. R.C. Dutt estimated that from 1757 to 1765, the Company extracted around £6 million from Bengal, nearly four times its total annual revenue, impoverishing India while fueling the British economy (*Dutt, 1905*).

THE DEVELOPMENT OF FAMINE POLICY

A **famine** is marked by widespread food scarcity due to factors like **war, natural disasters, crop failures, poverty, economic disasters, or government policies**. This often leads to **malnutrition, starvation, epidemics, and increased mortality**.

- **Famines Under the Company's Rule (1769-1857):** The **East India Company** oversaw twelve famines and four severe scarcities, including:

- **1769-70, Bengal:** One-third of the population died; no relief measures were taken, Company servants profited from the rice trade.
- **1781-82, Madras & 1784, North India:** Specific details not recorded.
- **1792, Madras:** Relief works initiated.
- **1803, North-Western Provinces and Oudh:** State grants revenue remissions, loans, advances to landowners, and offers a grain bounty in certain cities
- **1833, Guntur:** 200,000 deaths in a population of 500,000.
- **1837, Upper India:** Public works projects but limited aid to vulnerable groups.
- **Company Response:** No general famine relief system existed. Provincial governments attempted various relief measures, such as grain storage and penalties on hoarding.
- **Famines Under Crown Administration (1858-1947)**
 - **1860-61 (Delhi-Agra Region):** The first official inquiry into famine led by Colonel Baird Smith; however, no effective relief principles were established.
 - **1866 (Orissa Famine):** Despite warnings, the government failed to prepare, adhering to free trade principles, resulting in approximately 1.3 million deaths.
 - **1868 (Northern and Central India):** Relief efforts were inadequate compared to the widespread suffering, leading to significant mortality.
 - **1876-78 (North India):** Affected over 58 million people with around 5 million deaths. The government's minimal response highlighted its negligence.
 - **1896-97:** Nearly every province was affected, with around 34 million impacted. Relief operations were insufficient, especially in the Central Provinces.
 - **1899-1900:** About 28 million were affected; delayed relief efforts overwhelmed available systems.
 - **1901-08:** Multiple famines occurred, notably severe in 1906-07 and 1907-08.
- **Bengal Famine of 1942-43:** Caused by crop failures, wartime conditions, disrupted rice imports, and trade restrictions, this famine resulted in massive loss of life.
- **Famine Commissions and Policies in Colonial India**
 - **Famine Commission of 1880 (Headed by Sir Richard Strachey):** The Commission noted that prior to the late 18th century, the British had no **obligation** or **means** to provide **relief** during famines.
 - **Famine Code (1883):** Set **precautionary measures** during normal times and instructions for imminent relief campaigns.
 - ◆ Allowed for the designation of districts as **scarcity** or **famine areas**.

- ◆ Outlined **duties** of officials once a famine was declared, including recommendations for **land revenue** suspensions.
- ◆ Cost-sharing between **provincial** and **central governments** for famine relief.
- ◆ Established **migration facilities** for cattle during droughts.

Note: Famine commissions are covered in Chapter- 13

BRITISH POLICY TOWARDS PRINCELY STATES

The princely states, or Indian states, comprised **562 princely entities** covering an area of **712,508 square miles**. These ranged from minuscule states like **Bilbari**, with a population of only **27**, to larger entities like **Hyderabad**, comparable in size to Italy and home to **14 million** people.

The British adopted a **two-fold policy** towards princely states, aiming for their subordination to British authority while using them as protective entities for the empire, referred to as the **policy of subordinate union**.

Evolution of Relations Between British Authority and Indian States

During the period from **1757 to 1857**, the **East India Company** reinforced its power in India using a dual strategy: military conquest and diplomatic tactics. Key approaches included **Warren Hastings' Ring-Fence policy**, **Lord Wellesley's Subsidiary Alliance**, and **Lord Dalhousie's Doctrine of Lapse**.

Policy of Initial Isolationism (Pre-1740)

- Early British presence focused on **commerce** and **cooperation** with native rulers.
- Reluctance to pursue aggressive policies to avoid conflict as foreigners in India.

Company's Rise to Political Power (1740–1765)

- **Anglo-French Rivalry: Capture of Arcot (1751) and Battle of Plassey (1757)** marked the rise of the **East India Company**.
- **Diwani of Bengal:** After the **Battle of Buxar (1764)**, the Company gained **Diwani of Bengal, Bihar**, and through the **Treaty of Allahabad (1765)**, thus consolidating.

Policy of Ring Fence (1765–1813)

- **Warren Hastings:** Devised the **Ring Fence Policy** to create **buffer zones** protecting British territories from external threats like **Marathas, Mysore, and Afghan invaders**.
- **Military Support:** Promised military aid to buffer states like **Hyderabad** and **Mysore** in exchange for payment to British forces.

Subsidiary Alliance (1798–1805)

- **Lord Wellesley** expanded the Ring Fence policy with the Subsidiary Alliance to curb **French resurgence** and maintain British dominance.
- **States under Subsidiary Alliance:** Hyderabad (1798-1800), Mysore (1799), Tanjore (1799), and the Nawab of Awadh (1801). The Maratha Confederation, inclusive of figures like Peshwa Baji Rao II (1802), Bhonsle (1803), Raja of Berar (1803), Scindia (1804), Gaekwads and Bharatpur (1818), Jodhpur (1818), Jaipur (1818) & Holkars (1818) last.
- **Provisions:** Indian rulers had to allow **British forces** within their territories and maintain them. Rulers had to host a **British Resident** and get **British approval** for foreign relations.
- **Evolution:** The system solidified British control and subjugated regional states, including **Hyderabad, Awadh, and Marathas**.

Doctrine of Lapse (1848–1856)

- **Lord Dalhousie:** Applied the Doctrine of Lapse aggressively to annex states without a direct heir.
- **Premise:** States without a biological heir or adoption of a son could be annexed by Britain, claiming support from **Hindu law**.
- **Annexed States:** Included **Satara** (1848), **Jhansi, Nagpur** (1854), **Sambhalpur, Baghat**, and others.
- **Misgovernance:** Nawab Wajid Ali Shah overthrown and **Awadh** annexed (1856) on misgovernance grounds.

Policy of Subordinate Isolation (1813–1857)

- **Charter Act of 1833:** Ended the Company's **commercial** functions but retained **political control** over Indian states.
- **Paramountcy:** Indian states had to accept **British supremacy** while retaining some **internal sovereignty**.
- **Annexation Encouraged:** In 1834, the **Board of Directors** supported annexations, leading to the acquisition of **Satara and Nagpur** under **Dalhousie**.

Policy of Subordinate Union (1857–1935)

- **Post-1857 Revolt:** The British Crown took direct control of India, shifting from annexation to **punishment** and **deposition** of rulers.
- **End of Mughal Rule (1858):** Mughal sovereignty ended, and succession required **Crown approval**.
- **Subordination:** States had to cooperate with British authorities, and the Crown retained the right to intervene in both **internal** and **external** matters for the welfare of the state and British interests.
- **Modern Communication:** Advancements in **railways, telegraphs, and postal systems** facilitated increased British intervention and control over Indian states.

- **Curzon's Approach (Pre 1905):** Lord Curzon expanded the interpretation of historical treaties, positioning princes as public servants expected to collaborate with the Governor-General in administering Indian governance. His approach included a policy of **patronage and intrusive surveillance**, wanted to establish a direct relationship where the states would become uniformly dependent on British rule. This view contrasted with previous feudal or federal relations, aiming to create a consistent and integrated Indian political system.
- **Developments Post-1905:** In response to rising political unrest and revolutionary sentiments, a **policy of cordial cooperation** was implemented. The **Montford Reforms of 1921** led to the creation of a **Chamber of Princes** (Narendra Mandal) as an advisory body. Key aspects included:
 - **Classification of States:** Indian states were categorised into three groups:
 - ◆ **Directly represented:** 109 states.
 - ◆ **Represented through representatives:** 127 states.
 - ◆ **Feudal holdings or jagirs:** Recognized as such.
- **Butler Committee (1927):** To Improve the relationship between the Government of India and the Indian States (princely states and the British government) the **Butler Committee** was established. [UPSC 2017]. Its recommendations included:
 - **Supremacy of Paramountcy:** Paramountcy must remain supreme and adapt to the evolving needs of the states.
 - **Consent for Transfer:** States should not be handed over to an Indian government responsible to an Indian legislature without the consent of the states.

Policy of Equal Federation (1935-1947)

- **Government of India Act, 1935**
 - Proposed a **Federal Assembly** with **125 out of 375 seats** for princes and a **Council of States** with **104 out of 160 seats**.
 - Required **ratification** by states representing over **half the population**, but this scheme never materialised.
 - Following the outbreak of **World War II** in September 1939, the proposal was abandoned.

Integration and Merger

- **Integration of States (1946-47)**
 - **State People's Movement:** Demanded political rights and Constituent Assembly representation.
 - **Nehru's Leadership:** Led sessions in **Udaipur** (1945) and **Gwalior** (April 1947), warning states opposing accession.
 - **Vallabhbhai Patel's Role:** Took charge of the **States Department** (July 1947), overseeing integration in two phases.

- **Phase I: Instrument of Accession**
 - By **August 15, 1947**: All states except **Kashmir, Hyderabad, and Junagarh** signed the **Instrument of Accession**, recognizing central authority over **Defense, External Affairs, and Communication**.
- **Phase II: Integration of States**
 - States integrated into provinces or formed new units: **Kathiawar Union, Vindhya, Madhya Pradesh, Rajasthan, Himachal Pradesh**.
- **Features: Privy purses** to princes. Princes appointed as **Governors and Rajpramukhs**.

Failed Negotiations and State Sovereignty: **Cripps Mission (1942), Wavell Plan (1945), Cabinet Mission (1946), and Attlee's statement (Feb 1947)** failed to resolve the deadlock, leaving states exploring sovereignty.

Plebiscite and Army Action

1. **Junagarh:** Muslim Nawab favoured **Pakistan**, plebiscite favoured **India**.

2. **Hyderabad:** Desired sovereignty, signed **Standstill Agreement (Nov 1947)**, violence led to **Indian intervention (1948)**, accession in **Nov 1949**.
3. **Kashmir:** Hindu prince delayed accession, signed **Instrument of Accession (Oct 1947)** after **Pakistani invasion**, Indian troops defended, **Article 370** granted special status.

Challenges: Transforming states into **viable units** and absorbing into **constitutional units**.

- **Solutions:**
 - **216 smaller states** merged into provinces (**39 states** in **Orissa, Chhattisgarh**).
 - **61 states** centrally administered.
 - Formed **Kathiawar, Matsya, Patiala and East Punjab States Union, Rajasthan, and Travancore-Cochin (later Kerala)**.
- **Seventh Amendment (1956):** Abolished **Part-B states**, integrated into uniform structure.



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